

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff,

vs.

Case No.: 2026-CC-003472

RUSSELL W. WHEELER, ANNA S. WHEELER,
and ANY UNKNOWN PARTY(s) IN POSSESSION
(WHO MAY BE CHRISTOPHER L. BAILEY),
Defendants.

PLAINTIFF'S RESPONSE TO DEFENDANT'S EMERGENCY MOTION TO CONTINUE TRIAL

COMES NOW the Plaintiff, by and through undersigned counsel, in response to the Defendant's EMERGENCY MOTION TO CONTINUE TRIAL filed by the Plaintiff on September 21, 2026, and replies as follows:

1. The Plaintiff consents to a continuance of the trial from the September 29, 2026 non-jury trial on the basis of a claimed medical condition which, the Defendant claims, renders her unable to appear on the day of trial.
2. The consent is based upon the following:

The Defendant continues to pay the monthly rent into the registry of the Court in the amount of \$875.00 per month (plus court registry fees) by the first of each successive month at close of the Clerk of Court business. Failure to make any payment when due shall entitle the Plaintiff to an immediate default against the Defendant and any unknown tenant and a judgment on Plaintiff's complaint for possession of the property pursuant to Fla. Stat. §723.062.

3. The continuance shall not be for more than 60 days, during which time the Defendant shall schedule hearing time on her pending motions and a non-jury trial, with such scheduling to be coordinated with counsel for the Plaintiff.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Plaintiff's Response to Defendant's Emergency Motion to Continue Trial has been furnished via U.S. Mail to the Defendants, Russell W. Wheeler, Anna S. Wheeler And Any Unknown Party(S) in Possession (Who May Be Christopher L. Bailey), at their last known address of 900 - 9th Avenue East, Lot #118, Palmetto, Florida, 34221 and to Anna Wheeler via U.S. Mail to P.O. Box 789, Palmetto, FL 34220 and via email to wheeleranna892@gmail.com on this 24th day of September, 2026.

/s/William C. Price, III

William C. Price, III, Esquire

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